



Please read this agreement carefully before you sign it. It governs your rights and obligation when using Vivint's smart home and home security systems and the equipment that makes up that system (collectively, the "System") and smart home and home security services (collectively, the "Services"). This agreement contains multiple pages.

This agreement is between the account holder(s) listed below (“you”), and Vivint, Inc. (or, if you are a resident of Louisiana, then it is between you and Vivint Louisiana, Inc.) (“Vivint”). See the last page for the company address & license information. This agreement governs your purchase and use of the System and the Services. This includes the System that you purchased on the Agreement Date (defined below), which is listed in the Schedule of Equipment and Services document (“SES”). In addition, except as stated herein, this agreement also governs the System components you had before the Agreement Date and any components of the System that you add after the date of this agreement, as well as future updates and modifications made by Vivint to the System.

In this agreement, capitalized terms may be defined terms. Those words are used to avoid repeating longer phrases. For instance, this agreement generally uses “Vivint” rather than “Vivint, Inc. (or, if you are a resident of Louisiana, Vivint Louisiana, Inc.)” These defined terms have the meaning given in this agreement.

Primary Account Holder (First, MI, Last)	Phone	Email		
Additional Account Holder (First, MI, Last)	Phone	Email		
Installation address	City	County	State	Zip
Billing address (if different)	City	County	State	Zip

Agreement Date	Day	Month	Year	Initial Agreement Term (Months)	
Approx. System Installation Start Date MM/DD/YYYY				Approx. System Installation Completion Date	MM/DD/YYYY

Total Equipment Price (includes taxes)	Down Payment	\$
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If you are bundling the purchase of the System with a solar system and you cancel the agreement to finance, lease, or purchase the solar system, then the Monthly Monitoring Service Fee will increase to _____ (plus any applicable taxes), and your Total Monthly Fee for Services will increase to _____.

PLEASE NOTE: If you finance the purchase of your System, then the amount of your loan payment is not included in the table above. Instead, you will pay your loan monthly payment to your loan provider. A separate agreement governs your obligations to that loan provider. Also, other fees and charges may appear on your bill, as described in section 3.3 of this agreement.

By signing below, you agree to all the terms and conditions of this Agreement, and you acknowledge that (i) you understand that some provisions in this agreement limit your rights; (ii) you are at least 18 years old; and (iii) you are the owner of the Premises, or you are duly authorized to have the System installed and used at the Premises.

VIVINT, INC.

Signature _____

Printed Name _____

Alarm Agent Reg. No. / Contractor No.

YOU

Signature (Primary Account Holder)

Printed Name (Primary Account Holder)

Signature (Additional Account Holder)

Next Signature

Printed Name (Additional Account Holder)

PLEASE NOTE: THIS AGREEMENT CONTINUES FOR MULTIPLE PAGES FOLLOWING THIS ONE.

NOTICE OF RIGHT TO CANCEL

Do not sign this agreement if any of the spaces intended for the agreed terms to the extent of then available information are left blank.

You are entitled to a copy of this agreement at the time you sign it.

You may pay off the full unpaid balance due under this agreement at any time, and in so doing you shall be entitled to a full rebate of the unearned finance and insurance charges.

It shall not be legal for the seller to enter your premises unlawfully or commit any breach of the peace to repossess goods purchased under this agreement.

You, the buyer, may cancel this agreement/transaction any time prior to midnight of the third business day (excluding holidays) after the date of this transaction. If you are a resident of California age 65 or older or a resident of Alaska, you have 5 business days. If you are a resident of North Dakota age 65 or older, you have fifteen days. If you are a resident of Missouri age 70 or older or a resident of Alabama age 75 or older you have 30 days. If you are a resident of Ohio and the transaction was made over the phone in response to a telephone solicitation you have 7 days. See the attached notice of cancellation form for an explanation of this right.

(For residents of Washington, Washington DC, and Florida) You may cancel this agreement by providing written notice to the seller in person, by telegram, by email, or by mail. This notice must say that you do not want the goods or services and must be delivered or postmarked before midnight on the third business day (excluding holidays) after you sign this agreement. If mailed, the notice must be mailed to: Vivint, Inc. at 4931 North 300 West, Provo, UT 84604. If you cancel this agreement, the seller may not keep all or part of any cash down payment, and you must return or make available to the seller at the place of delivery any merchandise, in its original condition, received by you under this purchase agreement. By signing below, you acknowledge that Vivint has provided oral and written instructions and demonstrations on the proper care and use of the alarm system, that all warranties provided have been in writing, and that you have been informed that the use of alarms within the boundaries of the District of Columbia is governed by law.

(For residents of North Dakota) By signing below, you acknowledge receiving an oral notification that you may cancel this transaction at any time before midnight of the third business day after the date of this transaction or 15 business days if you are 65 years of age or older.

YOU ARE NOT OBLIGATED TO PAY ANY MONEY UNLESS YOU SIGN THIS CONTRACT AND RETURN IT TO THE MERCHANT.

Signature (Vivint Representative)

Signature (Primary Account Holder)

[Previous Signature](#)

Signature (Additional Account Holder)

[Next Signature](#)

SYSTEM EQUIPMENT PURCHASE AND SERVICES AGREEMENT

Index: What's in this agreement?

This index is designed to help you understand some parts of this agreement. It does not discuss every part of the agreement, or even every key part. It also does not take the place of the terms of the agreement. We hope it is a helpful guide, but please read the agreement in full.

[Section 1.](#) This section describes the Services Vivint may provide you, like monitoring and camera services. It explains your and Vivint's separate responsibilities related to the Services. It limits what you can use the System and Services for, as well as who can use them. It explains some limitations of the System and the Services. It explains that your local government may require you to get a license or registration to use and install the System and the Services.

[Section 2.](#) This section explains your and Vivint's separate responsibilities related to installing, maintaining, and repairing your System.

[Section 3.](#) This section describes fees and costs associated with the Services. In it, you authorize Vivint to charge the payment methods you provide Vivint.

[Section 4.](#) This section discusses the duration of this agreement, how you and Vivint may cancel it, and when an early termination fee may be charged to you.

[Section 5.](#) This section describes the limited warranty that comes with your System and how you can utilize it.

[Section 6.](#) This section describes how Vivint uses your personal information. You consent to Vivint contacting you in various ways, using your home solar energy generation (if applicable), and sharing your personal information with emergency responders when necessary.

[Section 7.](#) In this section, Vivint grants you a limited license to use the System and Services.

[Section 8.](#) This section discusses what types of losses and liabilities Vivint will not be liable for. It also explains what warranties and guarantees Vivint does not give you. This section also explains that you will indemnify Vivint in some situations.

[Section 9.](#) This section requires you and Vivint to use mandatory binding arbitration to resolve any disputes between us, rather than jury trials or group litigation. It explains that you can opt out of arbitration within a specific time period. In arbitration there is no judge or jury, and there is less discovery and appellate review than in court. In this section, you waive your right to participate in a class action (or other similar) legal proceeding against Vivint, with certain exceptions.

[Section 10.](#) In this section, you and Vivint waive the right to a trial by jury, with certain exceptions.

[Section 11.](#) This section explains when Vivint may assign this agreement and enforce this agreement. It also explains that this agreement is the only agreement between you and Vivint and that any agreement or promise made by others, like a Vivint sales representative, is not binding.

1. The Services

1.1 Services Vivint provides you. During the Term, Vivint will use commercially reasonable efforts to provide the Services listed on the SES (as may be amended from time to time). The Services may include smart home and home security system services (such as monitoring services) available through the components of your System. If you subscribe to them, the Services may also include camera services, DVR services, and other services that Vivint may provide now or in the future.

1.2 Responding to Alarms. Vivint's monitoring services monitor alarms that are automatically triggered by your System or manually triggered by System users (each an "Alarm"). Camera events or alerts are not deemed to be an Alarm. Vivint does not monitor alerts, events, or other information from System cameras. When an Alarm is triggered, Vivint may, in its sole discretion, attempt to contact you by telephone, text message, through the System itself, or by other manual or automated means to verify whether Emergency Responders are needed. If during such outreach, Vivint confirms that there is an actual emergency or if Vivint cannot confirm the status of the Alarm, Vivint will contact the appropriate emergency response agency (such as the police department, fire department, ambulance providers, and others (each an "Emergency Responder")). Emergency Responders in your area may not respond to Alarms that Vivint communicates to them, or they may require an on-site verification of an emergency before responding. Vivint will comply with the requirements imposed on it by Emergency Responders, and Vivint cannot control Emergency Responders' responses. If required in your area, Vivint will subscribe to a private response service ("Private Responder") to respond to an Alarm triggered by your System. Your monthly fees do not cover the costs and expenses associated with a Private Response or a response by an Emergency Responder responding to an Alarm at the Premises. If Vivint is charged those fees, Vivint will pass those costs and fees to you. Vivint is not responsible for damage caused to the Premises by Emergency Responders under any circumstances.

1.3 Age Limits. You must be at least 18 years old to be an account holder. Anyone under 13 is strictly prohibited from using the System and Services, and you should not allow them to use them.

1.4 Other authorized users. As an account holder, you can authorize others to use the Services and the System by adding them as additional users or giving them access credentials to your System. You are responsible for all use of the System and Services by you and others. You are responsible to ensure that anyone you authorize to use the Services is of suitable age, discretion and understanding and is responsible, informed, and capable of using the Services properly (including complying with this agreement and any use policies communicated to you).

1.5 Emergency contacts. The System allows you to designate people whom Vivint may contact in the event of an Alarm. You may change the designated people through the System. You must provide Vivint, and maintain up-to-date, the name and contact information of at least two emergency contacts. If you do not, the Services may be delayed or interrupted.

1.6 False alarms. You must use your best efforts to avoid causing false Alarms and train other users of your System to do so. If Vivint receives too many false Alarms from your System, then in Vivint's sole discretion, Vivint may suspend the Services or terminate this agreement. If an Emergency Responder or government agency charges Vivint a fine for a false alarm at the Premises, then Vivint may pass that charge to you, and you agree to pay it. You authorize Vivint, in its sole discretion, to access your System remotely to disable an audible Alarm (or to instruct emergency personnel on how to disable it) if governmental authorities or Emergency Personnel requests it. If an Alarm is disabled at the request of governmental authorities or Emergency Personnel, you are responsible for enabling it again.

1.7 Limits on your use of the System and Services. The System and the Services are only for your personal, residential, and non-commercial use on the Premises. You are not permitted to resell the Services, move the System to a new location without first notifying Vivint and obtaining Vivint's written approval, or use the System or Services for an unlawful purpose. You may not use the System or Services outside of the United States.

1.8 Limits of the System and the Services. You understand and agree that:

- You have selected the System and System equipment based on your personal considerations (such as equipment features, the layout of the Premises, insurance requirements, price, your personal preferences, etc.). You have also selected the location of the components of your System within the Premises. You understand that additional Vivint equipment or Services, which come at additional cost, may provide increased detection ability;
- While Vivint strives for the Services and System to be free from error, highly reliable, and constantly available, Vivint cannot guarantee that the System and Services will be 100% error-free, 100% reliable, or 100% available;
- The proper function of your System and the Services relies on and is dependent on networks, systems, devices, and services that Vivint cannot control and for which Vivint is not responsible. These may include, among other things, your Wi-Fi network, enabled wireless devices (such as a phone or tablet), broadband internet service, cellular services, and utility services. Those networks, devices, and services may be interrupted, delayed, refused, or otherwise limited, which may compromise the function of your System or Services;
- The response efforts and response time of Emergency Responders are outside of Vivint's control;
- You are responsible for educating yourself on how to respond to emergencies; and
- The Services are only available in the United States, and Vivint has no obligation to respond to Alarms triggered outside of the United States. If you access the Services from locations outside the United States, you do so at your own initiative and risk.

1.9 Permits are required before you install the System and use the Services. The state, county, and city where the Premises is located may require you to obtain a permit or license before the System is installed or used. Local authorities may not respond to alarm notifications until you obtain all such permits

and licenses. In its sole discretion, Vivint may request evidence of your permits and licenses and delay any Services until you provide them with proof that you have obtained such permits or licenses. IT IS YOUR RESPONSIBILITY TO OBTAIN ALL SUCH PERMITS AND LICENSES BEFORE THE INSTALLATION OF THE SYSTEM. IT IS ALSO YOUR RESPONSIBILITY TO COMPLY WITH ANY OTHER LEGAL REQUIREMENTS FOR USING THE SYSTEM.

[Back to Index](#)

2. Installation, Repair, and Maintenance of the System.

2.1 Self-installation. If you do not use Vivint's professional installation services, it is your responsibility to ensure that you install and use the System correctly, as explained in the installation instructions or manuals accompanying the System and at <https://www.vivint.com/smart-start/device-install>. IF ANY PART OF THE SYSTEM OR SYSTEM EQUIPMENT IS NOT PROPERLY INSTALLED, THE SYSTEM MAY EXPERIENCE FALSE ALARMS OR DETECTION FAILURES. ALSO, IF ANY COMPONENT OF THE SYSTEM IS OUTSIDE THE DETECTION RANGE OR HINDERED OR OBSTRUCTED BY WALLS, FURNITURE, OR OTHER THINGS, THE SYSTEM MAY EXPERIENCE DETECTION FAILURES.

2.2 Professional installation. If you purchase Vivint's professional installation services, Vivint will install your System in a professional and workmanlike manner. You will make the Premises available to installation personnel without significant interruption during Vivint's regular working hours. You understand and agree that installation of the System may require drilling into various parts of the Premises, such as interior or exterior walls or ceilings. Vivint is not responsible for cosmetic blemishes arising from normal installation work. While Vivint's installation personnel will take reasonable precautions to avoid drilling, nailing, or screwing into hidden obstructions or hazards in your wall, identifying and avoiding all hidden objects is not always possible. As such, you are responsible for informing Vivint's installation personnel if there are concealed obstructions such as pipes, ducts or wires, or other hazards in your walls. You are also responsible for any damage caused by your failure to do so.

If requested, you will supply Vivint with the Premises owner's contact information and evidence that the owner has authorized you to grant access to Vivint to the Premises. In addition, you agree to notify Vivint immediately of any changes of ownership or occupancy of the Premises. Your obligations under this section continue even if you sell or leave the Premises.

You understand and acknowledge that it is your responsibility to ensure that installation of the System will not invalidate any existing home or product warranty of any kind and that Vivint will not be liable for the loss of any warranty coverage.

2.3 Responsibilities you have with the System. Vivint tries to make its System and Services user-friendly. However, some aspects of the System are outside of Vivint's control and that you are responsible for, including the following:

- Even if Vivint is providing professional installation of your System, you are ultimately responsible for selecting the location of each component of the System, and you are responsible for ensuring that your System complies with any laws, regulations, or codes in your area that govern the location of any components of the System;
- The System and its components may require periodic maintenance to operate correctly, and it is your responsibility to regularly test and maintain the System, replace batteries when necessary, and ensure it functions properly. YOU UNDERSTAND AND AGREE THAT THE SYSTEM MAY NOT FUNCTION OR PROPERLY FUNCTION IF BATTERIES NEED REPLACEMENT. PLEASE CHECK ALL BATTERIES IN THE SYSTEM REGULARLY.

If you want Vivint's assistance, you may contact Vivint through the Vivint app, online at www.vivint.com, via email at customersupport@vivint.com, or over the phone at 1-800-216-5232. Vivint may assist you in troubleshooting any problems. Vivint reserves the right to charge for troubleshooting services unless those services are provided under warranty. If necessary, Vivint will recommend that a Vivint technician come to the Premises to service your System. Unless your System is under warranty, as described in section 5, you will be responsible for paying for a service visit and replacement parts.

2.4 System Requirements. To function properly, the Services and the System require the Premises to have each of the following:

- A working Wi-Fi network that is positioned to communicate reliably with all System components (if the Premises does not have a Wi-Fi network, the System may provide some but not all Services and System functionality, and you bear the associated risks of operating without full functionality);
- An enabled and supported wireless device, such as a smartphone or tablet, that is able to reliably communicate via Wi-Fi and Bluetooth.
- Always-on broadband Internet access with sufficient bandwidth to support the System and each of its components.
- 110-volt AC electrical power at unswitched, non-GFCI electrical outlets near System components that must be plugged in; and
- A clean and suitable environment that prevents environmental damage and pest damage to the System.

It is your responsibility to ensure that the Premises has these required elements and that they are compatible with the System and properly configured. You acknowledge that the Services and System may only work as intended when these requirements are met.

2.5 Smoke and carbon monoxide detectors. VIVINT MAKES NO WARRANTY OR REPRESENTATION THAT ANY SMOKE OR CARBON MONOXIDE DETECTORS THAT ARE MANUFACTURED OR SOLD BY VIVINT CONSTITUTE A FIRE ALARM SYSTEM OR MEET THE REQUIREMENTS OF ANY STATE OR LOCAL LAW, CODE,

ORDINANCE, AUTHORITY HAVING JURISDICTION OR INDUSTRY STANDARD, SUCH AS NFPA 72. YOU ARE SOLELY RESPONSIBLE FOR COMPLIANCE WITH THE REQUIREMENTS OF ANY APPLICABLE STATE OR LOCAL LAW, CODE, ORDINANCE, AUTHORITY HAVING JURISDICTION OR INDUSTRY STANDARD THAT MAY APPLY TO THE INSTALLATION, USE, AND SERVICE OF ANY SMOKE OR CARBON MONOXIDE DETECTORS MANUFACTURED OR SOLD BY VIVINT.

2.6 FOR CALIFORNIA CUSTOMERS ONLY: Your System includes all the components listed in the SES. This may include a control panel/communicator, one or more cameras, and one or more door/window, motion, glass break, environmental, video, smart locks, smoke detectors, and other sensors as selected by you. The beginning of the installation of wiring or delivery of equipment to your premises will constitute substantial commencement of the installation work to be performed. Failure by Vivint without legal excuse to substantially commence work within 20 days from the approximate installation starting date is a violation of the Alarm Company Act. Upon completion of the installation, Vivint will thoroughly instruct you on the proper use of the System. Vivint waives any right to file a mechanic's lien. If a smoke detection system has been installed, Vivint certifies that all costs attributable to making the smoke detection system operable for the residence identified by this document, including the sale and installation costs, do not exceed \$500. Vivint is licensed and regulated by the Bureau of Security and Investigative Services, Department of Consumer Affairs, 2420 Del Paso Road, Suite 270, Sacramento, CA, 95834, <https://www.bsis.ca.gov>.

[Back to Index](#)

3. Fees & Payment

3.1 Your payment obligations. You agree to pay Vivint the amounts listed in the table on the first page of this agreement, less any documented promotions and discounts. Separate services have separate fees. For example, standard monitoring and camera services each have a separate monthly fee. All monthly fees are payable monthly in advance. The first month's fees are due on the day this agreement is signed, but Vivint may defer the first payment until the second month at its discretion.

3.2 When Vivint can increase your monthly fees. During the Initial Term of this agreement, Vivint may adjust the monthly fees once a year by the greater of (i) the percentage of change in the latest Consumer Price Index (CPI) of All Urban Consumers United States City Average, as published by the U.S. Department of Labor, Bureau of Labor Statistics or (ii) 3%. After the Initial Term, Vivint may increase the monthly fees at its sole discretion. The fee increase(s) will take effect after Vivint notifies you of the increase in writing.

3.3 Separate fees that may appear on your bill. Vivint may pass on to you costs that are outside of Vivint's control and charged to Vivint by third parties (excluding product and part manufacturers and suppliers) to provide the Services to you and other Vivint customers. Vivint may also pass on to you the costs required to update your System or the Services to comply with changes in laws, regulations, utility systems, and technical standards and protocols. These fees are separate from the monthly fees described in section 3.1 and will be listed on your monthly bill. Vivint may increase or decrease these fees or add new fees as the underlying costs change and new costs are incurred or are reasonably likely to be incurred in the foreseeable future. Vivint may spread these fees over time and across its customer base and accrue them to cover significant upcoming, foreseeable events. Vivint will notify you of any new fees or fee increases before they are charged.

3.4 Late fees charged on late payments. If you fail to make any payment for more than ten days (or 15 days if you reside in Maine, Massachusetts, Nebraska, or Mississippi), or the minimum number of days permitted by law after it is due, Vivint will charge you a one-time late fee for up to the maximum amount permitted by law.

3.5 Fees you owe if you terminate this agreement before the end of the Initial Term. You must pay an early termination fee if you terminate this agreement before the end of the Initial Term. That fee is described in Section 4.2 below.

3.6 Costs for responses to an alarm from your System. If an Emergency Responder is contacted to respond to an alarm from your System, you are responsible for the cost of their response. For more information, see Section 1.2 above.

3.7 PAYMENT AUTHORIZATION. YOU AUTHORIZE VIVINT OR ITS ASSIGNEE(S) TO MAKE ELECTRONIC FUND TRANSFERS FROM YOUR BANK ACCOUNT(S) OR PROCESS CHARGES TO YOUR DEBIT CARD OR CREDIT CARD (EACH, AN "ELECTRONIC PAYMENT") IN THE AMOUNT IDENTIFIED ABOVE AS YOUR SYSTEM PRICE AND SERVICE FEES DUE FOR THE SYSTEM AND SERVICES (WHICH MAY INCLUDE, WITHOUT LIMITATION, MONTHLY SERVICE FEES, CAMERA SERVICE FEES, DVR SERVICE FEES, EQUIPMENT CHARGES, DOWN PAYMENT, INSTALLATION PAYMENT, AND INSTALLATION FEES) PLUS ANY APPLICABLE TAXES, AND INCLUDING ALL PAST DUE AMOUNTS, TRIP FEES, SERVICE FEES, RETURN PAYMENT FEES, AND ANY OTHER AMOUNTS WHICH MAY ACCUMULATE IN ARREARS ACCORDING TO THE TERMS ABOVE AND THE CONDITIONS OF THIS AGREEMENT (COLLECTIVELY, THE "FEE AMOUNT"). YOU AGREE TO ENTER ANY APPROPRIATE ELECTRONIC PAYMENT AUTHORIZATION FORM THAT VIVINT PROVIDES FOR YOUR SELECTED PAYMENT METHOD AND UPDATE THE INFORMATION CONTAINED ON SUCH FORM AS NECESSARY FOR VIVINT TO RECEIVE ELECTRONIC PAYMENTS. YOU FURTHER AGREE AND UNDERSTAND THAT VIVINT MAY RETAIN AND RELY UPON SUCH AUTHORIZATION TO PROCESS RECURRING ELECTRONIC PAYMENTS DURING THE TERM OF THIS AGREEMENT UNLESS CANCELLED BY YOU. IF YOU ELECT TO RECEIVE A PAPER INVOICE OR IF VIVINT DOES NOT RECEIVE YOUR ELECTRONIC PAYMENT FOR ANY REASON, VIVINT MAY SEND YOU A PAPER INVOICE, AND YOU UNDERSTAND & AGREE THAT AN ADDITIONAL PROCESSING FEE WILL APPLY TO EACH PAPER INVOICE SO RENDERED. FOR THE SAKE OF CLARITY, IF ANY ELECTRONIC PAYMENT IS DECLINED OR RETURNED TO VIVINT FOR ANY REASON, VIVINT WILL RESUBMIT THE CHARGES

OR PAYMENT TO ANY BANK ACCOUNT(S), DEBIT CARD(S) OR CREDIT CARD(S) PROVIDED TO VIVINT IN CONNECTION WITH YOUR ACCOUNT IN AN ATTEMPT TO COLLECT THE FULL FEE AMOUNT OR ANY PORTION(S) THEREOF PURSUANT TO APPLICABLE LAW, REGULATIONS AND RULES. YOU AUTHORIZE VIVINT TO ATTEMPT MULTIPLE ELECTRONIC PAYMENTS IF NECESSARY FOR VIVINT TO OBTAIN FULL PAYMENT OF THE FEE AMOUNT. YOU UNDERSTAND AND AGREE THAT EACH ELECTRONIC PAYMENT ATTEMPTED BY VIVINT MAY BE IN VARYING AMOUNTS, INCLUDING FOR AMOUNTS LESS THAN THE FEE AMOUNT OWED. YOU FURTHER UNDERSTAND AND AGREE THAT ANY SHORTAGE IN AMOUNTS COLLECTED FROM THE FEE AMOUNT MAY, IN VIVINT'S SOLE DISCRETION, BE ADDED TO SUBSEQUENT ELECTRONIC PAYMENTS ATTEMPTED BY VIVINT FOR THE PURPOSE OF RECOVERING THE ENTIRE FEE AMOUNT OWED. VIVINT MAY ALSO CHARGE YOU A FEE OF \$20 OR THE MAXIMUM ALLOWED BY LAW FOR PAYMENTS DECLINED OR RETURNED.

[Back to Index](#)

4. Term and Termination of the Services

4.1 Duration of this agreement. This agreement begins on the Agreement Date listed on its first page, and it continues through the duration of the Initial Term, which is also listed on its first page. AFTER THE INITIAL TERM, THIS AGREEMENT AUTOMATICALLY RENEWS ON A MONTH-TO-MONTH BASIS. The duration of this Agreement is referred to as its "Term."

4.2 How you can terminate this agreement. During the Initial Term, you may terminate this agreement by paying Vivint an early termination fee. The early termination fee is 50% of the fees you would have paid Vivint over the remainder of the Initial Term. This fee is a liquidated damage and not a penalty. This amount is a reasonable estimate of the costs that Vivint incurs to provide you with the System and Services, which it would have recovered had you retained the Services over the entire Initial Term. If Vivint terminates this agreement during the Initial Term, you do not have to pay an early termination fee. You are not required to pay an early termination fee, even during the Initial Term, if you pay upfront for the System or if you pay off all loans or retail installment contracts (including any loans with a third-party loan provider) used to purchase the System.

AFTER THE INITIAL TERM, YOU CAN TERMINATE THIS AGREEMENT AT ANY TIME BY CALLING VIVINT CUSTOMER SERVICE AT 1-800-216-5232 DURING NORMAL BUSINESS HOURS (BASED ON MOUNTAIN TIME) TO INITIATE THE CANCELLATION PROCESS. CUSTOMER SERVICE MAY THEN SEND YOU AN EMAIL OR TEXT THAT YOU REPLY TO WITH YOUR TERMINATION NOTICE. YOUR ACCOUNT WILL BE CANCELLED WITHIN 30 DAYS AFTER VIVINT RECEIVES YOUR TERMINATION NOTICE. If you owe Vivint any money when you terminate the agreement, you must pay it before your account can be terminated, where this is permitted by law.

4.3 When and how Vivint can suspend the Services or terminate this agreement. Vivint can terminate this agreement or suspend the Services by sending you a written notice of such termination or suspension at least 30 days in advance. Alternatively, Vivint can immediately terminate this agreement or suspend the Services (including any monitoring, upgrades, or repair services) in any of the following circumstances:

- Your telephone or internet service is interrupted or unavailable;
- You do not pay your bill or other amounts due to Vivint within 10 days after Vivint notifies you of your non-payment;
- You breach the terms of this agreement, and you do not fix that breach within 10 days after Vivint notifies you of your breach;
- Vivint is prevented from providing the Services or any part of the Services by a government or court action or ruling;
- Your actions prevent Vivint from performing its responsibilities under this agreement or render it impractical for Vivint to do so; and
- You become a debtor in a bankruptcy proceeding.

If Vivint suspends the Services for any of the bulleted reasons described above and you ask Vivint to reactivate the System, then you will have to pay a reconnection fee before Vivint resumes the Services.

If the Services are suspended because of an interruption caused by the destruction, damage, inoperability, or malfunction of Vivint's monitoring center, Vivint's telephone network, Vivint's equipment, or Vivint's facilities, then you will not be charged for the Services during the time they are formally suspended by Vivint. To receive a refund for payments you made (on a pro-rated basis) during the suspension period, you must call Vivint Customer Service at 1-800-216-5232. Upon your request, Vivint will reimburse you, on a pro-rata basis, for the period when the Services were suspended. This reimbursement is your sole and exclusive remedy for any such Services interruption.

4.4 What happens after this agreement is terminated? After this agreement is terminated, Vivint will stop providing you the Services and remotely disconnect your System. Vivint may also delete all system data, video and audio recordings, and other data associated with your account. Vivint will not be liable for the loss of any data.

[Back to Index](#)

5. LIMITED WARRANTY OF THE SYSTEM.

THIS LIMITED WARRANTY GIVES YOU SPECIFIC LEGAL RIGHTS AND YOU MAY ALSO HAVE OTHER RIGHTS, WHICH VARY FROM STATE TO STATE. VIVINT WARRANTS THAT DURING THE WARRANTY PERIOD, THE SYSTEM WILL BE FREE FROM DEFECTS IN MATERIALS AND WORKMANSHIP. TO THE FULLEST EXTENT ALLOWED BY LAW, VIVINT LIMITS THE DURATION AND REMEDIES OF ALL IMPLIED WARRANTIES, INCLUDING WITHOUT LIMITATION THE WARRANTIES OF MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE TO THE DURATION OF THIS EXPRESS LIMITED WARRANTY. SOME STATES DO NOT ALLOW LIMITATIONS ON HOW LONG AN IMPLIED WARRANTY LASTS, SO THE ABOVE LIMITATION MAY NOT APPLY TO YOU. VIVINT'S RESPONSIBILITY FOR DEFECTIVE GOODS IS LIMITED TO REPAIR OR REPLACEMENT AS DESCRIBED BELOW IN THIS WARRANTY STATEMENT.

5.1 Who may use this warranty. Vivint extends to you, the person who originally purchased the System from Vivint, this limited warranty. It does not extend to any subsequent owner or transferee of the System.

5.2 What this warranty covers. Subject to the terms, conditions, and exclusions below, this limited warranty covers defects in materials and workmanship of each component that makes up your System (each a "Covered Product") for the Warranty Period. During the 120 days after the date a given Covered Product was installed (for professionally-installed components) or shipped (for self-installed components), this limited warranty covers the cost of on-site installation or repair services to address defects with that Covered Product if you purchased professional installation services with your original purchase of the System. On-site services are only available after you have contacted customer service at (800) 216-5232 to attempt to resolve your needs over the phone and are only available to install equipment that requires professional installation. Equipment that does not require professional installation, such as door and window sensors, will be shipped to you for self-installation at then-prevailing shipping rates.

5.3 What this warranty does not cover. This limited warranty does not cover any damage due to: (a) transportation; (b) storage; (c) improper use; (d) failure to follow the product instructions or to perform any preventive maintenance; (e) modifications; (f) unauthorized repair; (g) normal wear and tear; and (h) external causes such as accidents, abuse, or other actions or events beyond our reasonable control. This limited warranty also does not cover the replacement of consumable parts, such as batteries, light bulbs, CO2 and smoke detectors, or Covered Products with a defaced or missing serial number. Covered Products that Vivint tests and finds to be in good working condition are not covered by the limited warranty. Professional installation or on-site repair is also not covered by this limited warranty unless you purchased professional installation of your System, and you make a warranty claim within 120 days of the Agreement Date.

5.4 The period of coverage. This limited warranty starts on the date the Covered Product is professionally installed or shipped to you by Vivint and lasts for one year (the "Warranty Period"). The Warranty Period is not extended if Vivint repairs or replaces the Covered Product. Vivint may change the availability of this limited warranty at our discretion, but any changes will not be retroactive.

5.5 Your remedies under this warranty. During the Warranty Period, Vivint will, in its sole discretion, either repair, replace, or refund a defective Covered Product free of charge. If Vivint replaces the Covered Product, Vivint will replace it with a substantially functional equivalent part or product, including refurbished and used parts and products. If you purchased professional installation, then Vivint will also provide free on-site repair, replacement, and installation services for 120 days from the Agreement Date for Covered Products that require professional installation (such as outdoor cameras and lighting solutions) if you and Vivint are not able to first troubleshoot your problem over the phone as required under Section 5.2. After those 120 days, you will be required to pay for on-site repair services.

5.6 How you obtain warranty services. To obtain warranty service, you must call (800) 216-5232 during the Warranty Period to schedule an on-site visit. Vivint may require you to return the defective product to qualify for the warranty, and if so, Vivint will provide you with a prepaid return slip. The limited warranty will be voided if you don't return the defective product when requested by Vivint.

5.7 LIMITATIONS OF LIABILITY. THE REMEDIES DESCRIBED ABOVE ARE YOUR SOLE AND EXCLUSIVE REMEDIES AND OUR ENTIRE LIABILITY FOR ANY BREACH OF THIS LIMITED WARRANTY. OUR LIABILITY UNDER THIS LIMITED WARRANTY WILL UNDER NO CIRCUMSTANCES BE MORE THAN THE ACTUAL AMOUNT YOU PAID FOR THE DEFECTIVE PRODUCT, NOR WILL VIVINT UNDER ANY CIRCUMSTANCES BE LIABLE FOR ANY CONSEQUENTIAL, INCIDENTAL, SPECIAL, OR PUNITIVE DAMAGES OR LOSSES, WHETHER DIRECT OR INDIRECT. SOME STATES DO NOT ALLOW THE EXCLUSION OR LIMITATION OF INCIDENTAL OR CONSEQUENTIAL DAMAGES, SO THE ABOVE LIMITATION OR EXCLUSION MAY NOT APPLY TO YOU. NOTHING IN THIS SECTION ALTERS OR LIMITS THE LIMITATIONS OF LIABILITY IN SECTION 8 OR ITS SUBSECTIONS OR ELSEWHERE IN THIS AGREEMENT.

5.8 What you can do in case of a warranty dispute with Vivint. The informal dispute resolution procedure described in section 9 of this agreement is available to you if you believe that Vivint has not performed our obligations under this limited warranty. You must use this informal procedure before pursuing any legal remedy in the courts.

5.9 Extended Warranty or Protection Plan. Vivint may offer additional hardware or subscription-related product protection plans or extended warranties that are supplemental to this original limited hardware warranty, including but not limited to the Vivint Protection Plan. Unless specified otherwise, these supplemental programs would not go into effect until after the applicable original limited warranty periods expire; and where programs run concurrently, this initial limited warranty takes precedence over any other programs during the initial limited warranty period. Within this and any other warranty protection periods, Vivint's sole obligations will be limited to repairing, replacing, or refunding defective products or parts of the Covered Product. Even if the monthly fee for a supplemental program is listed with the Service Fees on page 1, the terms of that plan are included in a separate agreement.

5.10 Vivint Protection Plan. The Vivint Protection Plan is governed by a separate agreement between you and the plan provider that contains the complete terms and conditions of coverage (the “Protection Plan Terms and Conditions”). The Protection Plan Terms and Conditions will be sent to you after your enrollment. If you would like to review the Protection Plan Terms and Conditions before you enroll, you may ask your sales representative, www.asurion.com or call (800) 216-5232.

[Back to Index](#)

6. Privacy & Account Security

6.1 How does Vivint use your personal information? The Vivint Privacy Notice, available at <https://www.vivint.com/legal/privacy-notice>, describes Vivint’s practices regarding your personal information.

6.2 How may Vivint contact you? You consent for Vivint and third parties acting on Vivint’s behalf to contact you by telephone (including calls to your cell phone), facsimile, text messaging, email, through the System, or the Vivint app. Those contacts may be regarding the System, your account, and the Services, and new offerings of products or services offered by Vivint, its affiliates, or third parties (including sending you calls, texts, emails, etc. to market third-party products and services to you). You understand and acknowledge that Vivint’s calls and texts may entail using an automatic telephone dialing system and/or artificial or prerecorded voice messages and that message and/or data rates may apply. YOU CONSENT TO VIVINT RECORDING ALL VIDEO, TELEPHONE, AND OTHER COMMUNICATION BETWEEN YOU, YOUR SYSTEM, AND VIVINT AND VIVINT AFFILIATES. When you provide Vivint with an email address, you agree that Vivint may send you emails regarding your System or Services or new Vivint or third-party products and services. You may unsubscribe from those emails using the unsubscribe link at the bottom of the email. If you do not wish to receive marketing-related calls, texts, or emails from Vivint, you may contact Vivint at (800) 216-5232 or customersupport@vivint.com to opt-out.

6.3 YOUR RESPONSIBILITIES WITH YOUR SYSTEM’S CAMERAS AND MICROPHONES. THERE MAY BE LAWS THAT APPLY TO YOUR USE OF ANY CAMERAS AND MICROPHONES YOU PURCHASE AS PART OF YOUR SYSTEM, AS WELL AS YOUR MICROPHONES AND CAMERAS RECORD AUDIO, STILL IMAGES, AND LIVE AND ARCHIVED VIDEO RECORDINGS. YOU WILL COMPLY WITH ALL FEDERAL, STATE, AND LOCAL LAWS GOVERNING THE PLACEMENT, PRESENCE, OPERATION, AND USE OF SUCH MICROPHONES AND CAMERAS AND THE CONTENT THAT IS RECORDED. WHERE REQUIRED BY LAW, YOU WILL (i) CONSPICUOUSLY NOTIFY PERSONS IN OR AROUND SUCH MICROPHONES AND CAMERAS THAT THEIR ACTIVITIES MAY BE RECORDED BEFORE MAKING ANY RECORDING OF THEM, (ii) PROVIDE ANY OTHER DISCLOSURE THAT MAY BE REQUIRED BY APPLICABLE LAW, AND (iii) OBTAIN ANY CONSENTS REQUIRED BY APPLICABLE LAW INCLUDING ANY STATE OR FEDERAL WIRETAP LAWS. YOU WILL INDEMNIFY, AND AT YOUR OWN COST AND EXPENSE, DEFEND AND HOLD HARMLESS VIVINT FROM AND AGAINST ANY AND ALL DAMAGES, LIABILITIES, AND COSTS OR EXPENSES OF ANY KIND ARISING OUT, IN CONNECTION WITH, RELATING TO, OR BECAUSE OF ANY SUCH AUDIO/VIDEO RECORDINGS. THE REQUIREMENT TO HOLD VIVINT HARMLESS DOES NOT APPLY TO CUSTOMERS IN PENNSYLVANIA.

6.4 Consent for Vivint to collect and use information about your home’s solar energy generation and use. You consent to your home energy provider sharing information about the Premises’ energy consumption with Vivint. You also consent to Vivint using this information in connection with the Services. If you have a residential solar energy system on the Premises, you consent to your solar energy service providers (such as Enphase, SolarEdge, etc.) sharing with Vivint information about the power generated by your solar energy system. You also consent for Vivint to use that information in connection with the Services. For instance, Vivint may display that information in the Vivint app, among other uses.

6.5 What does Vivint do to protect your data? Vivint cares about the integrity and security of your personal information. Vivint strives to implement reasonable technical, administrative, and physical security measures designed to protect your personal information, the System, and the Services. However, no company (including Vivint) can guarantee that unauthorized parties will never be able to defeat its securities measures or use or access your personal information for improper purposes. You acknowledge that you provide your personal information at your own risk.

6.6 How can you keep your account and System secure? You are responsible for maintaining the confidentiality of your account login information and System access codes (e.g., door codes and panel PIN). You are responsible for using account passwords that you do not use anywhere else, including a combination of at least eight upper- and lower-case letters, numbers, and symbols. You are also responsible for using strong and unique System access codes, including separate PIN numbers for different users or user types, and not using System access codes that you use for other purposes (e.g., bank PIN). You are responsible for periodically changing your login information and System access codes and using two-factor authentication with your account. You should immediately notify Vivint of any unauthorized use or suspected unauthorized use of your account or any other suspected security breach. Vivint is not liable for any loss or damage arising from your failure to comply with the above requirements and obligations.

6.7 Consent for Vivint to share your information with Emergency Responders. You consent to Vivint sharing your personal information and your emergency contact’s personal information with your local government authorities and Emergency Responders in connection with an Alarm.

[Back to Index](#)

7. License to Use the System and Services.

Your System and aspects of the Services are programmed with copyrighted and proprietary software ("Software"). Parts of the Services may also be proprietary to Vivint. Vivint grants you a limited license to use the System, Services, and Software. This license is subject to other policies, terms, and conditions and any terms and conditions provided on the Vivint app or your System display screens. This license ends when this agreement ends. This license is not exclusive, and Vivint may revoke it. You may not transfer or sublicense this license. Vivint remains the sole owner of all intellectual property rights (patents, trademarks, copyrights, etc.) in and to the System, Services, and Software. You will not make any modifications to the System, its programming, or the Software to enable the System to work with any other monitoring service. Vivint may update the terms of this license, or any part of it, by notifying you of a new version via email or an in-app notification in the Vivint app. Any separate software license or Terms of Use of any part of the System, Services, and Software that conflict with this license will govern.

Vivint may, from time to time, develop patches, bug fixes, updates, upgrades, and other modifications to improve the performance of the Services, the System, or components of the System. These may be automatically installed without providing any additional notice or receiving any further consent. YOU CONSENT TO AUTOMATIC SOFTWARE UPDATES INCLUDED OR UTILIZED IN THE SYSTEM OR SERVICES. If you do not want such updates, your remedy is to terminate this agreement.

[Back to Index](#)

8. LIMITATION OF VIVINT'S LIABILITY

Nothing in this agreement, particularly in this "Limitation of Liability" section, will be interpreted or construed to limit or exclude liability that cannot be so limited or excluded under applicable law.

8.1. No Guarantees; Warranty Disclaimer. EXCEPT FOR THE LIMITED WARRANTY DESCRIBED IN SECTION 5, YOU UNDERSTAND AND AGREE THAT VIVINT MAKES NO GUARANTEE OR WARRANTY OF ANY KIND, INCLUDING THE IMPLIED WARRANTY OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE, CONCERNING YOUR SYSTEM OR THE SERVICES. VIVINT DOES NOT WARRANT THAT THE SYSTEM OR VIVINT'S SERVICES WILL ALWAYS DETECT OR HELP PREVENT ANY BURGLARY, FIRE, HOME INVASION, OR ANY OTHER EVENT. VIVINT DOES NOT UNDERTAKE ANY RISK THAT YOU OR THE PREMISES, OR THE PERSON OR PROPERTY OF OTHERS, MAY BE SUBJECT TO INJURY OR LOSS IF SUCH AN EVENT OCCURS. THE ALLOCATION OF SUCH RISK REMAINS WITH YOU, NOT VIVINT. VIVINT ALSO DOES NOT WARRANT THAT THE SYSTEM OR VIVINT'S SERVICES CANNOT BE DEFEATED OR COMPROMISED OR THAT THE SYSTEM OR VIVINT'S SERVICES WILL ALWAYS OPERATE.

8.2. Vivint's liability is limited. IN NO EVENT WILL VIVINT BE LIABLE FOR ANY INDIRECT, CONSEQUENTIAL, SPECIAL, EXEMPLARY, OR INCIDENTAL DAMAGES, INCLUDING WITHOUT LIMITATION, DAMAGES FOR PERSONAL INJURY OR DAMAGES TO PROPERTY. IT IS IMPRACTICAL AND EXTREMELY DIFFICULT TO DETERMINE THE ACTUAL DAMAGES, IF ANY, THAT MAY RESULT FROM A FAILURE BY VIVINT TO PERFORM ANY OF ITS OBLIGATIONS. EXCEPT AS OUTLINED IN THE LIMITED WARRANTY IN SECTION 5, IF VIVINT IS FOUND LIABLE FOR LOSSES, DAMAGE, OR INJURY UNDER ANY LEGAL THEORY RELATING IN ANY WAY TO THE SYSTEM OR THE SERVICES, THEN VIVINT'S TOTAL LIABILITY WILL BE LIMITED TO \$500. THIS AGREED-UPON AMOUNT IS NOT A PENALTY. RATHER, IT IS A SPECIFIC LIQUIDATED DAMAGES AMOUNT THAT THE PARTIES AGREE IS FAIR AND REASONABLE AND CONSTITUTES YOUR SOLE REMEDY. NOTWITHSTANDING THE FOREGOING, THIS LIMIT DOES NOT APPLY TO PROPERTY DAMAGE CAUSED BY VIVINT OR ITS AGENT WHILE REPOSSESSING THE SYSTEM OF CUSTOMERS IN PENNSYLVANIA. You may obtain from us a higher limitation of liability for an additional charge. If you elect this option, we will attach a rider to this Agreement that will set forth the amount of the higher limitation of liability and the amount of the additional charge. Agreeing to the higher limitation of liability does not mean that Vivint is an insurer.

8.3. Vivint, Inc. and Vivint Louisiana, Inc. are not insurers and this agreement does not provide you with insurance. The fees and costs you pay to Vivint, Inc. or Vivint Louisiana, Inc. are based on the value of the Services and System provided to you under this agreement. These fees and costs are not insurance premiums and do not provide any insurance coverage for the value of your life, the Premises, anyone else's life, property in your custody or located on the Premises, or any risk of loss of the aforementioned. If you wish to have insurance to cover the Premises, its contents, and its occupants and visitors, you alone are responsible for securing and maintaining that insurance. Any insurance policy purchased through Vivint Warranty and Home Insurance, LLC or Vivint Insurance Services, LLC will be provided, administered, and fulfilled by those entities or the third-party insurance companies they represent pursuant to the terms of the applicable insurance policy. You understand that Vivint, Inc. and Vivint Louisiana, Inc. are not insurers and are not providing you with insurance of any type under this agreement. Vivint, Inc. and Vivint Louisiana, Inc. are not liable for any loss, damage, or injury that may occur on the Premises. You hereby release Vivint, Inc. and Vivint Louisiana, Inc. and covenant not to bring any claim against Vivint, Inc. or Vivint Louisiana, Inc. for any such loss, damage, or injury. You release and waive for your insurer all subrogation and other rights to recover against Vivint, Inc. and Vivint Louisiana, Inc. arising from the payment of any claim for loss, damage, or injury arising out of this agreement. Notwithstanding the foregoing, for residents of Pennsylvania, Vivint maintains insurance covering personal injury and property damage in an amount not less than \$50,000, each as caused by Vivint's personnel.

8.4. Indemnification by You. If any other person or entity makes a claim or files a lawsuit against Vivint for any loss, harm, or damages (including property damage, personal injury, or death) in any way related to (i) your System or the Services or (ii) any inaccuracies in any information provided by you to Vivint, you will indemnify, defend, and hold Vivint harmless for any and all losses, expenses, and costs incurred by Vivint that arise from or are related to

those claims and lawsuits. This obligation does not apply if the harm or damages was primarily caused by the misconduct of Vivint personnel while on your Premises or by a product defect in the System or the Services. You hereby release Vivint from any claims of any parties suing through your authority or in your name, such as your insurance company, and you agree to defend and indemnify Vivint against any such claim. The requirement to hold Vivint harmless does not apply to residents of Pennsylvania.

8.5 Benefit to Others. The provisions of this section 8 apply to and benefit Vivint and its affiliates, parent entities (direct and indirect), successors and assigns, agents, employees, contractors, subsidiaries, dealers, affiliates, partners (both direct and indirect), channel partners, third party providers of your System, and all other partners used by Vivint to provide the System and Services to you.

8.6 Timing of Claims or Suits. No lawsuit or any other legal proceeding connected with this agreement will be brought or filed after the later of (i) one year after the incident giving rise to the claim occurred or (ii) the shortest time allowed by applicable law.

[Back to Index](#)

9. **ARBITRATION PROVISION– PLEASE REVIEW CAREFULLY AS THIS IMPACTS YOUR LEGAL RIGHTS.**

YOU AND VIVINT AGREE THAT ANY DISPUTE, CONTROVERSY, OR CLAIM OF ANY KIND INVOLVING YOU AND VIVINT THAT ARISES OUT OF OR RELATES TO OR IS CONNECTED WITH THIS AGREEMENT, REGARDLESS OF THE LEGAL THEORY ALLEGED OR USED TO DETERMINE LIABILITY (WHETHER BASED IN CONTRACT, TORT, FRAUD, NEGLIGENCE, STATUTE, REGULATION, ORDINANCE, OR OTHERWISE), WILL BE RESOLVED THROUGH INDIVIDUAL ARBITRATION. THIS SECTION 9 IS HEREAFTER REFERRED TO AS THE “ARBITRATION PROVISION”.

9.1 You may opt-out of arbitration. You may opt out of this Arbitration Provision by providing notice to Vivint in writing no later than 30 days after the Agreement Date. To do so, you must write to: Vivint, Inc. (or Vivint Louisiana, Inc., for Louisiana residents) Attn: Legal Department - Arbitration, 4931 N. 300 W., Provo, Utah 84604. You must provide the date, your name and residential address, and a clear statement that you wish to opt-out of this Arbitration Provision. Your decision to opt out of this Arbitration Provision will have no adverse effect on your relationship with Vivint or the services provided by Vivint. Accordingly, any opt-out notifications submitted after this 30-day period will not be effective.

9.2 You may sue in small claims court. Notwithstanding anything in this section 9 to the contrary, either you or Vivint may elect to have a dispute heard in a small claims court in the area where you receive(d) the Services or where the Premises is located if the claim(s) underlying the dispute is not aggregated with the claim(s) of any other person and if the amount in controversy is properly within the jurisdiction of the small claims court.

9.3 How to initiate an arbitration proceeding. Either you or Vivint may initiate an arbitration proceeding by opening a case with the American Arbitration Association (“AAA”) by visiting its website (www.adr.org) or calling its toll-free number (1-800-778-7879) and sending a demand to the AAA that includes all the information required in the notice. You must also deliver the demand, or otherwise notify Vivint regarding the arbitration proceeding by mail addressed to Legal Department - Arbitration, 4931 N. 300 W., Provo, Utah 84604. Any arbitration under this section 9 will be governed by the Federal Arbitration Act. Arbitrations will be administered by the AAA pursuant to the most recent version of its Consumer Arbitration Rules (the “AAA Rules”). You can obtain the AAA Rules from the AAA by visiting its website (www.adr.org) or calling its toll-free number (1-800-778-7879). The payment of the AAA’s fees and costs will be governed by the AAA Rules. You may hire an attorney to represent you in arbitration. You are responsible for your attorneys’ fees and additional costs.

9.4 Where an arbitration may be located. The arbitration will be held in the jurisdiction where you live, in Utah (either in Salt Lake County or Utah County), or any other location agreed upon by you and Vivint. The arbitrator will decide issues of arbitrability of claims and will have exclusive authority to resolve any dispute relating to the interpretation, applicability, enforceability, or formation of this agreement. The terms of this agreement bind the arbitrator as it relates to available damages and other limitations. Judgment on the arbitration award may be entered in any court having jurisdiction.

9.5 Waiver of Class, Collective, and Representative Actions/Relief. THERE IS NO RIGHT OR AUTHORITY FOR ANY CLAIMS UNDER THIS AGREEMENT TO BE ARBITRATED OR LITIGATED (i) ON A CLASS ACTION, COLLECTIVE ACTION, OR OTHER JOINT OR CONSOLIDATED BASIS, OR (ii) ON BASES INVOLVING CLAIMS BROUGHT IN A PURPORTED REPRESENTATIVE CAPACITY ON BEHALF OF THE GENERAL PUBLIC (SUCH AS A PRIVATE ATTORNEY GENERAL), OTHER SUBSCRIBERS, OR OTHER PERSONS. THE ARBITRATOR MAY AWARD RELIEF ONLY IN FAVOR OF THE INDIVIDUAL PARTY SEEKING RELIEF AND ONLY TO THE EXTENT NECESSARY TO PROVIDE RELIEF WARRANTED BY THAT INDIVIDUAL PARTY’S CLAIM. THE ARBITRATOR MAY NOT AWARD RELIEF FOR OR AGAINST OR ON BEHALF OF ANYONE WHO IS NOT A PARTY. THE ARBITRATOR MAY NOT CONSOLIDATE MORE THAN ONE PERSON’S CLAIMS AND MAY NOT OTHERWISE PRESIDE OVER ANY FORM OF A CLASS,

COLLECTIVE, OTHER JOINT OR CONSOLIDATED, OR REPRESENTATIVE PROCEEDING. THIS WAIVER OF CLASS, COLLECTIVE, OTHER JOINT OR CONSOLIDATED, OR REPRESENTATIVE ACTIONS AND RELIEF IS AN ESSENTIAL PART OF THIS ARBITRATION PROVISION AND CANNOT BE SEVERED FROM IT. THE REMAINING PORTIONS OF THIS ARBITRATION PROVISION ARE NOT ESSENTIAL PARTS OF THIS ARBITRATION PROVISION AND CAN BE SEVERED FROM IT BY A COURT OF COMPETENT JURISDICTION.

By signing below, you agree to this Arbitration Provision (described above, in section 9), which requires any dispute between you and Vivint to be resolved through individual arbitration. In arbitration, there is no judge or jury, and there is less discovery and appellate review than in court.

VIVINT, INC.	YOU
_____ Signature (Vivint Representative)	_____ Signature (Primary Account Holder)
_____ Date	_____ Signature (Additional Account Holder)

Previous Signature

[Back to Index](#)

10. WAIVER OF JURY TRIAL.

YOU AND VIVINT AGREE TO WAIVE THE RIGHT TO A TRIAL BY JURY IN RELATION TO ANY DISPUTE ARISING OUT OF THIS AGREEMENT OR ANY DISPUTE COVERED BY THE FOREGOING ARBITRATION CLAUSE. THIS SECTION DOES NOT APPLY TO CUSTOMERS IN CALIFORNIA OR PENNSYLVANIA.

[Back to Index](#)

11. Miscellaneous

11.1 Assignment and Subcontractors. Vivint may transfer or assign this agreement. You may only transfer this agreement to someone else (including someone who purchases or rents your premises) if Vivint approves the transfer in writing. Vivint may use other parties to provide installation, repair, or other Services. This agreement, particularly sections 8 and 9, will apply to them and the work or services they provide and protect them in the same manner as it applies to and protects Vivint.

11.2 Retention of Rights. Vivint may decide not to enforce our rights or exercise a remedy under this agreement in a specific instance. This will not be a waiver of our rights or remedies in other instances. Nothing contained in this agreement limits our rights and remedies available at law or in equity.

11.3 Entire Agreement. The entire and only agreement between you and Vivint is written in this agreement, including any SES and addenda (for example, addenda outlining promotional terms). It replaces any earlier spoken (oral) or written understanding or agreements between you and Vivint, including any prior System Equipment Purchase and Service Agreement and any statements made by sales personnel, customer service representatives, or installation personnel. It may not be changed by any oral statements made by sales personnel, customer service representatives, or installation personnel. Except as otherwise set forth herein, this agreement may only be changed by mutual, written agreement between you and Vivint. If any provision of this agreement is found to be invalid or illegal by a court or arbitrator, the balance of the agreement will remain in force.

11.4 State License Information. **AL** License No. 980, 12082, 1321, 06194, All complaints by Alabama residents against Vivint may be directed to the Alabama Electronic Security Board of Licensure, 7956 Vaughn Road, PMB 392, Montgomery, Alabama 36116, (334) 557-0983.; **AR** License No. 0001625, 1440150. Regulated by: Arkansas State Police, #1 State Police Plaza Drive Little Rock, Arkansas 72209 501-618-8600; **CT** License No. ELC.0191352-L5, HIC.0634529; **GA** License No. LVU406189; **MD** License No. 21PLU-SS1455, 145060; **MA** License No. 1471 C, SSCO-001351, 4483 A1; **NY** License No. 12000301658, 68VI1000200, Licensed by the N.Y.S Department of State; **OK** License No. 1026, 143819; **PA** License No. PA017248; **TN** License No. 1253, 1524; **CA** License No. ACO6286, LCO5368, 874794; ALARM COMPANY OPERATORS ARE LICENSED AND REGULATED BY THE BUREAU OF SECURITY AND INVESTIGATIVE SERVICES, DEPARTMENT OF CONSUMER AFFAIRS, 1625 N. MARKET BLVD., SACRAMENTO, CALIFORNIA 95834. (916) 445-1254. CONTRACTORS ARE REQUIRED BY LAW TO BE LICENSED AND REGULATED BY THE CONTRACTORS' STATE LICENSE BOARD WHICH HAS JURISDICTION TO INVESTIGATE COMPLAINTS AGAINST CONTRACTORS IF A COMPLAINT REGARDING A PATENT ACT OR OMISSION IS FILED WITHIN FOUR YEARS OF THE DATE OF THE ALLEGED VIOLATION. A COMPLAINT REGARDING A LATENT ACT OR OMISSION PERTAINING TO STRUCTURAL DEFECTS MUST BE FILED WITHIN 10 YEARS OF THE DATE OF THE ALLEGED VIOLATION. ANY QUESTIONS CONCERNING A CONTRACTOR MAY BE REFERRED TO THE REGISTRAR, CONTRACTORS' STATE LICENSE BOARD P. O. BOX 26000, SACRAMENTO, CALIFORNIA 95827. (800) 321- 2752.

Information about the California Contractors State License Board (CSLB): CSLB is the state consumer protection agency that licenses and regulates construction contractors. Contact CSLB for information about the licensed contractor you are considering, including information about disclosable complaints, disciplinary actions, and civil judgments that are reported to CSLB. Use only licensed contractors. If you file a complaint against a licensed contractor within the legal deadline (usually four years), CSLB has authority to investigate the complaint. If you use an unlicensed contractor, CSLB may not be able to help you resolve your complaint. Your only remedy may be in civil court, and you may be liable for damages arising out of any injuries to the unlicensed contractor or the unlicensed contractor's employees. For more information: Visit CSLB's internet website at www.cslb.ca.gov; Call CSLB at 800-321-CSLB (2752); Write CSLB at P.O. Box 26000, Sacramento, CA 95826.

11.5 Company Contact Information

Vivint, Inc., 4931 North 300 West, Provo, UT 84604, Phone: 800.216.5232, Fax: 801.377.4116, www.vivint.com, Email: customersupport@vivint.com.

Vivint Louisiana, Inc., 1701 Old Minden Rd, Suite 32, Bossier City, LA 71111, Phone: 800.216.5232 www.vivintlouisiana.com
Fax: 801.377.4116 | Email: support@vivinylouisiana.com

Smart Home Pros, Inc., 4931 North 300 West, Provo, UT 84604, Phone: 800.216.5232, Fax: 801.377.4116, Email: customersupport@vivint.com.

[Back to Index](#)